IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an application for mandates in the nature of Writ of *Certiorari,* Prohibition and Mandamus, under and in terms of Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

C.A.(WRIT) Application No: 212/2015 and
C.A.(WRIT) Application No: 144/2017

Vernon Manilal Fernando,
No.45, Sri Ratnajothi Mawatha,
Koswatte, Nawala.

Petitioner

Vs.

1. W.P.C. Wickramaratne,
Auditor General,
Auditor General's Department,
No.306/72, Polduwa Road,
Battaramulla.

1A. H.M. Gamini Wijesinghe,
Auditor General,
Auditor General's Department,
No.306/72, Polduwa Road,
Battaramulla.

1B. Chulantha Wickramaratne,
Auditor General,
Auditor General's Department,
No.306/72, Polduwa Road,
Battaramulla.

2. N.R.M. Dharmasiri,
Assistant Auditor General-Special Investigation,
Auditor General's Department,
No.306/72, Polduwa Road,
Battaramulla.

2A. G. Thevagnanam,
Assistant Auditor General- Special Investigation,
Auditor General's Department,
No.306/72, Polduwa Road,
Battaramulla.

3. K.D.S. Ruwanchandra,
Director General,
Department of Sports Development,
No.33, Torrington Place,
Colombo 07. (Discharged-vide order dated 03.10.2018)

4. M.I.M. Rafique,
Secretary to the Ministry of Tourism and Sports,
No. 09, Philip Gunawardena Mawatha,
Colombo 07. (Discharged-vide order dated 03.10.2018)

4A. D.M.R.B. Dissanayake,
Secretary to the Ministry of Sports,
No. 09, Philip Gunawardena Mawatha,
Colombo 07. (Discharged-vide order dated 03.10.2018)

5. Ranjith Rodrigo
Past President,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

5A. Anura De Silva
President,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

5B. Umar Jaswar,
President,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

5C. J. Sri Ranga,
President,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

6. Upali Hewage,
Past Secretary General,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

6A. Balendra Anthony,
Secretary General,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

6B. Umar Jaswar,
Secretary General,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

6C. Upali Hewage,
Secretary General,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

6D. Indika Thenuwara,
Secretary General,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

7. Hon. Navin Dissanayaka,
Minister of Sport,
No. 09, Philip Gunawardena Mawatha,
Colombo 07. (Discharged-vide order dated 03.10.2018)

7A. Hon. Dayasiri Jayasekara,
Minister of Sports,
No. 09, Philip Gunawardena Mawatha,
Colombo 07. (Discharged-vide order dated 03.10.2018)

Respondents

Parties of: C.A.(WRIT) Application No: 212/2015

Vernon Manilal Fernando,
No.45, Sri Ratnajothi Mawatha,
Koswatte, Nawala.

Petitioner

Vs.

1. H.M. Gamini Wijesinghe,
Auditor General,
Auditor General's Department,
No.306/72, Polduwa Road,
Battaramulla.

1A. Chulantha Wickramaratne,
Auditor General,
Auditor General's Department,
No.306/72, Polduwa Road,

Battaramulla.

2. N.R.M. Dharmasiri,
Assistant Auditor General-Special Investigation,
Auditor General's Department,
No.306/72, Polduwa Road,
Battaramulla.

2A. G. Thevagnanam,
Assistant Auditor General-Special Investigation,
Auditor General's Department,
No.306/72, Polduwa Road,
Battaramulla.

3. S.E.R.T.M.S.T. Bandara,
Director General,
Department of Sports Development,
No.33, Torrington Place,
Colombo 07. (Discharged-vide order dated 03.10.2018)

4. D.M.R.B. Dissanayake,
Secretary to the Ministry of Sports,
No. 09, Philip Gunawardena Mawatha,
Colombo 07. (Discharged-vide order dated 03.10.2018)

4A. Jayantha Wijeratne,
Secretary to the Ministry of Sports,
No. 09, Philip Gunawardena Mawatha,
Colombo 07. (Discharged-vide order dated 03.10.2018)

5. Anura De Silva,
President,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,

Colombo 07.

5A. Umar Jaswar,
President,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

5B. J. Sri Ranga,
President,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

6. Balendra Anthony,
Secretary General,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

6A. Umar Jaswar,
Secretary General,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

6B. Upali Hewage,
Secretary General,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

6C. Indika Thenuwara,
Secretary General,
Football Federation of Sri Lanka,
No.100/09, Independence Avenue,
Colombo 07.

7. Hon. Dayasiri Jayasekara,
Minister of Sports,
No. 09, Philip Gunawardena Mawatha,
Colombo 07. (Discharged-vide order dated 03.10.2018)

Respondents

Parties of: C.A.(WRIT) Application No: 144/2017

Before: **Dhammika Ganepola, J.**
Damith Thotawatte, J.

Counsels: Faisz Musthapha P.C. with Sanjeewa Jayawardana P.C., Keerthi Thilakaratne and Shantha Jayawardena instructed by Nithi Murugesu & Associates for the Petitioner.

Chaya Sri Nammuni, DSG for the 1st and 2nd Respondents.

Eraj De Silva P.C., with Daminda Wjeratne and Zul Luthufi instructed by Dimuthu Kuruppuarachchi for 5B, 6B and 6C Respondents.

Argued: 26.11.2024, 28.01.2025, 08.10.2025, 15.10.2025 and 22.10.2025

CA Writ 212/15
20.01.2020, 06.02.2026 by 1st and 2nd Respondents.
,
09.09.2019, 19.12.2025 by Petitioner.
09.05.2019 by 6B Respondent.

CA Writ 144/17
20.01.2020, 09.02.2026 by 1st and 2nd Respondents.
09.09.2019, 19.12.2025 by Petitioner
09.05.2019 by 6A Respondent.

Judgment Delivered: 12.03.2026

Thotawatte, J.

Introduction and Background

The Petitioner is an Attorney-at-Law who has been involved in the administration of football in Sri Lanka and internationally for several decades, having held several positions within the Football Federation of Sri Lanka (FFSL), including President and later Chairman of its Management Committee. The FFSL functions as the national governing body for football in Sri Lanka and its financial affairs are regulated under the Sports Law No. 25 of 1973, in terms of which its accounts are subject to audit by the Auditor-General.

During the period when the Petitioner was associated with the management of the Federation, the annual accounts of the FFSL were maintained and audited in accordance with the prevailing statutory framework, and the Auditor-General had issued audit reports in respect of those accounts, which were subsequently presented to and approved at the Annual Congress of the Federation. In particular, the accounts relating to the years 2006, 2007 and 2008 had been audited and certified at the relevant time.

Several years thereafter, by letter dated 06 August 2014 (annexed to C.A. Writ 212/15 as R3), the Secretary General of the FFSL requested the Auditor-General to conduct an investigation into certain financial transactions of the Federation. Acting on that request, officers of the Auditor-General's Department commenced a special investigation and sought documentation and explanations relating to those transactions from the relevant football authorities and affiliated bodies.

The Petitioner states that although he became aware that such an investigation was being conducted into matters relating to the period during which he was associated with the Federation, he was not afforded an opportunity to respond to the allegations under investigation. Thereafter, the Auditor-General issued an Audit Query dated 19.01.2015 (annexed to C.A. Writ 212/15 as R6), addressed to the Ministry of Sports relating to the said transactions.

Subsequently, in March 2015, the Auditor-General issued reports on the financial statements of the FFSL for the years 2012, 2013 and 2014, which contained a section titled *"Transactions of Apparent Fraudulent Nature"*. These reports referred to several transactions said to have taken place during earlier years, including transactions relating

to the period when the Petitioner functioned as Chairman of the Management Committee of the Federation.

Contending that the said reports contained adverse findings made without affording him an opportunity of being heard and that the Auditor-General had acted beyond the proper scope of the audit function, the Petitioner invoked the writ jurisdiction of this Court by filing C.A. Writ Application No. 212/2015, seeking *inter alia* to quash the impugned audit reports.

Being aggrieved by the fact that the impugned audit observations continuing to appear in subsequent reports and documentation of FFSL whilst the earlier application remained pending, the Petitioner filed C.A. Writ Application No. 144/2017 seeking to restrain the continued reproduction and publication of the same audit material pending the determination of the earlier Writ application No. 212/2015.

Although the two applications were instituted at different times, they arise from the same underlying audit process and raise closely related questions of law and fact, including the nature of the impugned material, the scope of the Auditor-General's powers, and whether the acts complained of are amenable to the writ jurisdiction of this Court. In those circumstances, determining the applications separately would result in an unnecessary duplication. Accordingly, in the interests of judicial economy and the proper resolution of the issues in dispute, this Court considers it appropriate to hear and determine the two applications together.

The Petitioner in the aforesaid applications seeks, *inter alia*, the following reliefs:

(a) Issue a Writ of *Certiorari* quashing the Auditor-General's Reports on the Financial Statements of the Football Federation of Sri Lanka for the years ending 31 December 2012, 2013 and 2014, or in the alternative quashing the findings and observations therein insofar as they relate to the Petitioner, including the matters described as "*Transactions of Apparent Fraudulent Nature*".

(b) Issue a Writ of Prohibition restraining the Respondents from tabling, publishing, circulating or otherwise relying on the said Reports or the impugned findings therein to the prejudice of the Petitioner.

(c) Issue a Writ of *Mandamus* directing the Auditor-General and the relevant officers to conduct any audit, inquiry or investigation concerning the Petitioner in accordance with law and upon giving him a reasonable opportunity to be heard.

Issues for Determination

Upon consideration of the pleadings and submissions, the issues that arise for determination may be distilled as follows:

1. Whether the impugned material complained of by the Petitioner constitutes a definitive decision of the Auditor General, capable of being quashed by *certiorari* or merely unresolved audit queries and information gathered in the course of audit.

2. Whether the continued reproduction of such material in successive audit reports and allied documents gives rise to a justiciable cause of action in writ, particularly on the grounds of natural justice.

3. Whether, on the material before the Court, any illegality, irrationality, procedural impropriety, or excess of jurisdiction is established so as to warrant the exercise of the writ jurisdiction of this court under Article 140.

Nature of the Impugned Documents

In the Petition, the documents marked P18, P19 and P20 are repeatedly described by the Petitioner as reports of the Auditor-General containing alleged false findings of financial impropriety against him. However, the material placed before the Court demonstrates that these documents were not independent investigative reports directed against the Petitioner personally. Rather, they consisted of reproduction of the Auditor-General's reports on the financial statements of the Football Federation of Sri Lanka for the relevant years, which were subsequently published in the brochure prepared for the Annual Congress of the Federation in 2015.

Thus, the documents impugned by the Petitioner are not autonomous determinations directed against him, but portions of institutional audit reports relating to the financial affairs of the Federation.

Allegation of Re-opening or Amending Earlier Audits

The Petitioner has contended that the Auditor General had previously issued audit reports containing no adverse findings for the earlier years and thereafter impermissibly revived or amended those conclusions. Even assuming, for the sake of argument, that such previous reports had been issued, the Respondents' affidavits demonstrate that the impugned material was not the result of a retrospective amendment of finalized audit opinions, but flowed from subsequent information and complaints received, which necessitated further audit inquiry.

Nature and Purpose of the Audit Query

The impugned observations trace their origin to an Audit Query dated 19.01.2015 which referred to certain transactions requiring clarification. The Petitioner has interpreted that query as containing false findings of financial impropriety against him. The material before the Court, however, indicates otherwise. The said Audit Query was addressed to the Secretary to the Ministry of Sports, who functions as the Chief Accounting Officer of the institution under audit, for the purpose of obtaining explanations with a copy forwarded to the Chairman of the Football Federation of Sri Lanka. The communication itself makes clear that it was issued merely as a request for information and clarification in the course of the audit process and not as an audit report or a determination of wrongdoing.

The constitutional and statutory framework governing public audit obliges the Auditor-General to examine transactions affecting public funds and to seek explanations from the responsible accounting authorities of the institution concerned. In terms of Article 154 of the Constitution read with the provisions of the National Audit Act No. 19 of 2018, and the applicable Financial Regulations, the Auditor-General is empowered to call for documents, question responsible officers, and report unresolved matters relating to public finances. Where an audit query raised in the course of such examination remains unanswered or inadequately explained, the Auditor-General is required, in the discharge of his constitutional and statutory duty, to record the matter in the audit report and, where necessary, to reflect such unresolved observations in subsequent reports until satisfactory clarification is received.

Further, the audit mandate necessarily includes the power to investigate transactions or matters that come to light in the course of audit, notwithstanding the existence of earlier audit certifications.

Scope of the Petitioner's Challenge

The Petitioner does not challenge the constitutional or statutory authority of the Auditor-General to audit the accounts of the Football Federation of Sri Lanka or to conduct inquiries relating thereto. On the contrary, the Petitioner acknowledges that the accounts of the Federation are required by law to be audited by the Auditor-General in terms of Section 21A of the Sports Law No. 25 of 1973 (as amended), read with Article 154 of the Constitution, and he himself relies on earlier audit reports issued by that office certifying that the accounts for the relevant years were in order.

Natural Justice and the Audit Process

The Petitioner's principal contention is that the impugned observations were made without affording him an opportunity to respond to the allegations. However, the audit correspondence and affidavits placed before the Court demonstrate that the Audit Query was addressed to the Secretary to the Ministry of Sports, being the Chief Accounting Officer of the institution concerned. The statutory audit framework contemplates that explanations to audit queries are furnished by the responsible accounting authorities of the institution whose accounts are under examination.

The material before the Court further indicates that the Secretary to the Ministry had not submitted a response to the said audit query at the time the impugned reports were issued. In such circumstances, the Auditor-General was entitled to proceed on the basis that the matters raised in the audit query remained unresolved. The failure of the responsible accounting authority to respond to the query cannot, in itself, impose upon the Auditor-General an obligation to afford a separate hearing to individuals who were not the officers responsible for responding to the query.

Further, the Auditor General's role was confined to issuing audit reports in accordance with law. The reproduction of extracts thereof in FFSL publications was an act of the FFSL and its office bearers. No material has been placed before the Court to establish that the Auditor-General was responsible for the said publication.

Even if an opportunity was granted for the Petitioner to be heard, it would not have resulted in resolving the situation as the explanation or answer should come from the Secretary of the Sports Ministry. Under above circumstances there is no obligation or

purpose for the Auditor-General to give the Petitioner a hearing before the Chief Accounting officer had submitted his explanation or answer.

Amenability to Writ and the Nature of the Impugned Act

The jurisdiction of this Court under Article 140 of the Constitution is directed against acts or decisions which have the character of a definitive determination affecting legal rights or obligations. The writ of *certiorari* is traditionally available to quash decisions of public authorities where such decisions are made in excess of jurisdiction, in violation of the principles of natural justice, or otherwise affected by illegality or procedural impropriety.

In the present case, the impugned material relied upon by the Petitioner does not disclose such a determination. The material before the Court demonstrates that the observations complained of by the Petitioner originated from an audit query raised in the course of an ongoing audit examination of the accounts of the Football Federation of Sri Lanka. An audit query, by its very nature, is an investigative and preliminary step intended to obtain clarification regarding financial transactions reflected in institutional accounts. It does not constitute an adjudication of rights or a determination of liability against any individual.

Consequently, the mere recording of unresolved audit observations in an audit report cannot, without more, be equated to a quasi-judicial decision capable of being quashed by way of *certiorari*.

Limits of Judicial Review over the Audit Function

The constitutional role of the Auditor-General is to safeguard public finance by examining accounts, calling for explanations from responsible officers, and reporting matters of concern to the appropriate authorities. This function is investigative and supervisory in character and is exercised in the public interest.

The writ jurisdiction of this Court is not intended to transform the Court into a supervisory body with regards to the manner in which audits are conducted or the with regards to the methodology adopted in the discharge of the constitutional audit mandate. Unless the impugned act discloses a clear excess of jurisdiction, illegality, irrationality or procedural impropriety.

The impugned reports merely record unresolved audit observations relating to transactions reflected in the accounts of the Football Federation of Sri Lanka and do not amount to any determination of liability on the part of the Petitioner. Accordingly, they cannot be regarded as acts amenable to the writ jurisdiction of this Court.

Conclusion

For the foregoing reasons, this Court finds that the impugned audit observations do not constitute determinations amenable to the writ jurisdiction of this Court and that no illegality, excess of jurisdiction, or procedural impropriety on the part of the Respondents has been established. Accordingly, the applications bearing C.A. (Writ) Nos. 212/2015 and 144/2017 are dismissed subject to Cost.

Judge of the Court of Appeal

Dhammika Ganepola, J.

I agree

Judge of the Court of Appeal